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1. INTRODUCTION

1.1 BACKGROUND

Orange has developed from a small village laid out at “Blackman's Swamp” in the 1820s into the premier regional centre for the Central West of NSW.

The City has built upon the natural resources of the area, which have been strongly influenced by the climate of the Tablelands and the ancient volcanic activity of Mount Canobolas that provided geological conditions for mining and hard-rock quarries; and by fertile basalt soils that provided for native forests, agriculture and plantation forestry. The resulting landscape is diverse, ranging from steep hills around the Pinnacle in the south west to the flatter grazing land fed by springs within the fractured basalt shield of the Orange Plateau around Springside, Spring Creek, Spring Terrace, and Spring Hill. The landscape changes again as the geology changes, with the rolling hills around Shadforth, Lucknow, to Clifton Grove in the East and Clergate and March in the north.

An interconnected network of creeks, which forms part of the upper catchment of the Macquarie River, provides water to the rural-based primary industries as well as to the urban population, business and industry.

The City has grown into a local government area with a population of about 37,000 people and a regional centre with a population in excess of 110,000.

The City’s traditional urban design is reflected in heritage streetscapes of period houses set amongst tree-lined streets and formal parks and a scattering of former rural mansions in and around the urban centre. Impressive public and commercial buildings from different periods reflect the City’s role as a regional centre over many years. The rural and natural landscapes are valued by the community and are recognised as having potential to generate further tourism opportunities.

Orange is supported by a diverse economy centred on manufacturing, services, retail and traditional primary industries such as agriculture, forestry and mining. Air, rail and road transport links provide strong connections to other regions. A radial road network from Orange links the City to a number of towns and villages in the area.

The interaction of the natural, economic, social and cultural resources of Orange combines to provide the context for environmental planning in Orange City. This interaction gives Orange its character as a unique place that people identify with and value.

1.2 PLANNING IN ORANGE

LOCAL PLANS

The planning approach for Orange City assists with managing the City's resources for a sustainable future.

This local planning approach comprises the following interrelated documents:

- Orange Local Environmental Plan 2000 (LEP)
- Orange Development Control Plan 2004 (DCP) (as amended) – this Plan
- Orange Development and Subdivision Code
- Orange Development Contributions Plan 1999
- Waratah Development Contributions Plan 2005
- Orange Energy Smart Home Code

These planning documents also relate to other local area reports such as the:

- Orange Heritage Study
- Urban Release Strategy
- Rural residential strategies
- Business Development Strategy Study and
- Industrial land study for Orange, Cabonne and Blayney.

Council's *Development and Subdivision Code* is deemed to form part of this Plan in respect to engineering design and construction requirements for development or subdivision works.

The implementation of these plans integrate with environmental-protection activities in Council's *Management Plan* and the annual *State of Environment* report and provide a comprehensive approach to environmental planning in the City.

This Plan (and Orange LEP 2000) relate to Division 4, Part 3 of the *Environmental Planning and Assessment Act*.

STATE PLANNING

Pending formalisation of the NSW Government's *planFirst* initiatives for the integration of state, regional and local planning, the above local plans also relate to State Planning Policies, the Building Code of Australia and associated Australian Standards and Codes such as the National Plumbing and Drainage Code.

To find out more about State Planning Initiatives click here (if viewing this Plan on a web page).

1.3 USING THIS PLAN

This Plan provides details and criteria for assessing development to support the statutory provisions of Orange LEP 2000. Cross-references to relevant clauses in LEP 2000 are provided in this Plan. The DCP should be read in conjunction with the relevant parts of LEP 2000. Automatic links are provided between the LEP and DCP on Council's website for cross-referencing.

The Plan provides information to guide development and it also makes reference to other plans, maps and supporting material to assist in achieving planning outcomes appropriate to the City.

This Plan is also intended as an educational resource for planning in the City that helps to explain planning issues and measures that affect the development of Orange and to provide alternative

planning solutions to issues. The Plan therefore refers to publications and relevant websites of interest to planning issues. These references are provided for information and, as such, do not form part of the planning provisions of the Plan. References and web page links may be updated at any time.

The purpose of this Plan is to encourage and promote development within the City that complements and enhances the natural and cultural (including social and economic) resources of the City. By recognising the relationship between environmental and socio-economic influences, the Plan is consistent with Council's obligations to ESD.

Council encourages innovative development consistent with the resource base of the City.

The Plan focuses on quality planning outcomes. The Plan encourages development that demonstrates that it positively contributes to, or "fits in" with, the character and environment of the City.

While some development aspects may involve technical matters requiring specialist input, the Plan recognises that there may be a number of approaches to achieving an appropriate environmental outcome. Relevant reference material can be utilised in determining development solutions. Where alternative solutions are proposed in development applications, the applications should include supporting information including reference sources.

Fitting in with the character of an area is achieved by developing an understanding of the existing or planned features of an area. Development proposals need to demonstrate an understanding of their environmental context.

The Plan encourages submissions that show how the development will "fit in" with its local setting. In the Plan, numerical standards that govern development form are applied sparingly. Council may agree to variations to numerical standards where Council is satisfied that the development meets the relevant planning principles and objectives and is consistent with the character of the locality. Standards under LEP 2000, however, override provisions in this Plan.

Development applications must be able to demonstrate to Council's satisfaction that the development will achieve the planning outcomes identified in this Plan.

1.4 MAKING AN APPLICATION

The following steps are recommended when making a development application:

1 Discuss the proposal with Council staff to determine what issues may affect the proposed development.

The **Development Coordinating Committee** (DCC) is available to discuss preliminary planning proposals. The DCC meets daily and includes planning, health & building and engineering professionals.

2 Check that the land use is permitted in the proposed location under Orange LEP 2000 according to the zoning and special provisions. Although a particular land use may be permitted in the zone, the detailed layout and design of the development may determine if the development is appropriate for the proposed site.

3 Determine how the development may be affected by the provisions of this and any other DCPs or State Environmental Planning Policies that may apply to the land or development type.

4 Determine how the development may be affected by related plans such as the *Orange Development Contributions Plan 1999* and the *Development and Subdivision Code*.

5 Prepare a development application. Council recommends that applicants gain competent professional assistance in the preparation of development applications for development that may require resolution of environmental issues. Applications may be required to be accompanied by a Statement of Environmental Effects or, for designated development, Environmental Impact Statements.

6 Submit a development application with the owner's consent, fees, plans and supporting information including a site analysis and means of servicing the site where necessary.

The application should also demonstrate how the planning outcomes outlined in this Plan are to be achieved. Council may request further information or impose conditions to ensure that the development conforms to the development assessment criteria.

Applications may also be made for a construction certificate where all necessary information - such as structural details and fire management services - is submitted. A construction certificate cannot be issued until development consent. Where development consent conditions require changes to plans, a construction certificate may not issue until the information submitted complies with the development consent.

ALL APPLICANTS ARE ENCOURAGED TO MEET WITH COUNCIL STAFF PRIOR TO COMPLETING PLANS FOR SUBMISSION SO THAT ISSUES CAN BE IDENTIFIED AT AN EARLY STAGE.

PROPONENTS OF DEVELOPMENTS POTENTIALLY INVOLVING A NUMBER OF ISSUES SHOULD MEET WITH THE DCC AT AN EARLY STAGE OF PLANNING A PROJECT.

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